

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #01	CCRB Case #: 201809132	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/01/2018 10:47 PM	Location of Incident: 20th Precinct stationhouse	18 Mo. SOL 12/16/2020	Precinct: 20		
Date/Time CV Reported Thu, 11/01/2018 10:52 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 11/01/2018 10:52 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alan Schlissel	02333	944992	020 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Alberto Santana	05270	896174	020 PCT
2. LT Riayasat Ali	00000	931518	020 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Alan Schlissel	Abuse: Police Officer Alan Schlissel refused to provide his name to § 87(2)(b)	A . Unsubstantiated
B . POM Alan Schlissel	Abuse: Police Officer Alan Schlissel refused to provide his shield number to § 87(2)(b)	B . Unsubstantiated

Case Summary

On November 1, 2018, § 87(2)(b) filed this complaint on the CCRB's call processing system.

On November 1, 2018, at approximately 10:47PM, § 87(2)(b) went to the 20th Precinct stationhouse to file a complaint against her neighbor. § 87(2)(b) spoke to Police Officer Alan Schlissel, of the 20th Precinct, who stated that a report could not be taken. § 87(2)(b) asked PO Schlissel for his name and shield number, which he allegedly refused to provide (**Allegations A & B- Abuse of Authority: Unsubstantiated**).

§ 87(2)(b) was not arrested or summonsed as a result of this incident. Video footage was received from the 20th Precinct stationhouse but it did not capture this incident as there was no camera that faced the civilian waiting area (Board Review 01).

Findings and Recommendations

Allegation A-Abuse of Authority: Police Officer Alan Schlissel refused to provide his name to § 87(2)(b)

Allegation B- Abuse of Authority: Police Officer Alan Schlissel refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) stated that she went to the 20th Precinct stationhouse because her neighbor was calling her names such as “bitch” (Board Review 02). PO Schlissel told § 87(2)(b) that people have freedom of speech and he could not take a report. § 87(2)(b) then called 311 because she was unsatisfied. The 311 operator instructed § 87(2)(b) to obtain PO Schlissel's name and shield number so § 87(2)(b) asked PO Schlissel for that information; PO Schlissel refused to provide his name and shield number to § 87(2)(b). § 87(2)(b) then went to the front desk and asked two officers for PO Schlissel's name and shield number. PO Schlissel told the officers not to provide this information. One of the officers at the desk, identified by the investigation as Sergeant Alberto Santana, provided PO Schlissel's name and shield number to § 87(2)(b). § 87(2)(b) provided PO Schlissel's name and shield number in her DiRad message to the CCRB, which she left approximately five minutes after leaving the stationhouse.

PO Schlissel corroborated § 87(2)(b) in that she came into the stationhouse and he told her that her complaint did not merit a harassment report (Board Review 03). PO Schlissel stated that § 87(2)(b) asked for his name and shield number, which he provided to her. PO Schlissel denied ever refusing to provide his name and shield number to § 87(2)(b). PO Schlissel did not recall Sgt. Santana ever speaking to § 87(2)(b) but believed she may have spoken to Lieutenant Riayasat Ali. PO Schlissel did not hear any other officer provide his name and shield number to § 87(2)(b).

Sgt. Santana, who was the desk officer at the time of the incident, prepared a command log entry in regards to this incident stating that § 87(2)(b) wanted the name and shield number of the member of service who denied her a complaint report, which was then provided to her by both Sgt. Santana and PO Schlissel (Board Review 04). Sgt. Santana stated in his CCRB interview that he walked over towards where § 87(2)(b) and PO Schlissel were speaking to see if he could help (Board Review 05). § 87(2)(b) asked PO Schlissel for his name and shield number, which PO Schlissel provided. § 87(2)(b) asked PO Schlissel for this information twice and he provided it each time. § 87(2)(b) seemed bothered by her conversation with PO Schlissel, which she

conveyed through her tone. § 87(2)(b) asked Sgt. Santana for PO Schlissel's name and shield number, which he also provided.

Lt. Ali did not have an independent recollection of this incident (Board Review 06). Lt. Ali did not hear PO Schlissel ever refuse to provide his name and shield number upon request.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

It is therefore recommended that **Allegation A** and **B** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in three allegations.
 - § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
- Police Officer Alan Schlissel has been a member of service for 11 years and has been a subject in two CCRB complaints and five allegations, none of which have been substantiated. § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Criminal, and Civil Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 22, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to this complaint (Board Review 07).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED].

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date